



GOLD MEDAL INJURY LAW

WASHINGTON

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2001 S RAINBOW BLVD, SUITE 140
LAS VEGAS, NEVADA 89146

FAX: (702) 442-1852

{{TODAY_LONG}}

SENT VIA FACSIMILE

{{insurance2.insurer.name}}

Attn: {{insurance2.adjuster.name}}

{{insurance2.insurer.address1line1}}, {{insurance2.insurer.address1line2}}

{{insurance2.insurer.address1city}}, {{insurance2.insurer.address1state}} {{insurance2.insurer.address1zip}}

F: {{insurance2.adjuster.fax1}}

Re: **Our Client:** {{fullname}}
 Your Insured: {{insurance2.insured.name}}
 Claim No.: {{insurance2.claimnumber}}
 Date of Loss: {{intake.incidentDate| longDate}}

Dear **Mr./Ms.** {{insurance2.adjuster.lastname}},

In response to your most recent offer to settle of **\$(amount)**, please allow this letter to serve as confirmation of our client's declination.

Your insured's negligence, as indicated by the facts of the case, caused this accident that resulted in serious medical issues that continue to plague my client to this day.

Your offer demonstrates a lack of understanding regarding low impact injuries. To that end, I am providing a list of publications regarding low impact injuries. Most of these articles have been written by the Society for Automotive Engineering (SAE) and others by various professors who have conducted extensive research regarding these injuries. Among these and other respected groups, it is well known that despite the low velocity of these types of impacts they are capable of causing significant injuries. The articles that you may review to enlighten you as to the dynamics of low impact injuries are as follows:

1. SAE Technical Paper Series #921573. "Dynamics of Low Speed Crash Tests with Energy Absorbing Bumpers." Thomas J. Szabo and Judson Welcher.
2. SAE Technical Paper Series #900542. "Whiplash in Low Speed Vehicle Collisions." Richard I. Emori and Junji Hriguchi.
3. SAE Technical Paper Series #921574. "A Physician-Engineer's View of Low Velocity Rearend Collisions." Peter A. Orner.
4. SAE Technical Paper Series #930211. "Automobile Bumper Behavior in Low-Speed Impacts." David J. King, Gunter P. Siegmund and Mark N. Bailey.
5. SAE Technical Paper Series #940916. "Characteristics of Specific Automobile Bumpers in Low-Velocity Impacts." Gunter P. Siegmund, Mark N. Bailey, and David J. King.
6. SAE Technical Paper Series #950352. "Data and Methods for Estimating the Severity of Minor Impacts." Mark N. Bailey, Bing C. Wong, and Jonathan M. Lawrence.
7. MacNabb, I., "Acceleration Injuries of the Cervical Spine," MacNabb, I. "Acceleration Injuries of the Cervical Spine," Journal Bone/Joint Surgery 46: A 1797-1799, 1964
8. MacNabb, I., "The Whiplash Syndrome," Ortho Clin. North Am., 2:1389-403, 1971.
9. Seletz, M.D., "Whiplash Injuries," JAMA, 1953 pgs. 1750-1755.
10. Hirsch, M.D., Professor of Orthopedic Surgery, U.M.D.N.J., in Orthopedic Clinics of North America Oct. 1988.
11. Dunn, E.J. and Blazar, S. "Soft Tissue Injuries of the Lower Cervical Spine, Instructional Course Lectures" A.A.O.S. Vol. 36, pgs. 499-512 (1987).
12. Hildingson, C. and Toolanen, G., "Outcome after Soft Tissue Injury of the Cervical Spine – A Prospective Study of 93 Car Accident Victims." Acta Orthopaedica Scandinavica, Vol. 61(4), pgs. 357-59 (1990)



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13. Ryan, G.A. Garrett, J.W., "A Quantitative Scale of Impact Injury" CAL No. VJ-1 Cornell Aeronautical Laboratory, Inc., Cornell University, October 1968.
14. McKenzie, J.A., Ph.D. & Williams, J.F., Ph.D., Journal of Biomechanics, "The Dynamic Behavior of the Head and the Cervical Spine During Whiplash" 1971 pp. 477-490
15. SAE Technical Paper Series #892437. Yoganandan N., Haffner M., Maiman D.J., et al. "Epidemiology and Injury Biomechanics of Motor Vehicle Related Trauma to the Human Spine." In: Proceedings of the 334d Stapp Car Crash Conference.
16. Schutt, C.H., Johan, F.C., "Neck Injury to Women in Auto Accidents," JAMA 206(12): 2689-2692 (1968)
17. SAE Technical Paper Series #892437. Detroit, Michigan. January 1968. McElhaney J.H., Joherty B.J., Paver J.G., et al. "Responses of the Human Spine to Torsion." In: Proceedings of the 33rd Stapp Car Crash Conference.
18. SAE Technical Paper Series #680080. Berton R.J. "Whiplash: Tests of the Influential Variables." Proceedings of the Automotive Engineering Congress, Detroit, Michigan, January 1968.
19. Olsson, I., Banketorp, O., "An In-depth Study of the Neck Injuries in Rear End Collisions." IRCOBL. September 1990, p. 269.
20. States, J.D., Korn M.W., Masengill, J.B. "The Enigma of Whiplash Injuries" In: Thirteenth Annual Conference Proceedings, Rochester, NY: American Association for Automotive Medicine, 1969, p.83-108.

All of the above articles refer to the fact that "vehicles which do not sustain damage in low speed impacts can produce correspondingly higher dynamic loadings on their occupants than those which plastically deform under the same or possibly more severe impact conditions" as is the case in John Robinson's crash. (MacNabb, I. "Acceleration Injuries of the Cervical Spine," Journal Bone/Joint Surgery 46: A 1797-1799, 1964)

At this time and up until [Day Month, Year], allow this letter to serve as our counter offer settlement in the amount of \$[amount]. If you refuse to settle this matter for \$[amount] by that time, the within settlement demand will be withdrawn and I will pursue an excess verdict against your client. Be assured that I will seek your client's personal assets.

Please forward a copy of this letter to your client; as you have a duty to send her this letter. Let us resolve this case now without further delay and expense and not subject your client to any excess liability. Please note that this correspondence and its content are inadmissible in court under ER 408. I look forward to hearing from you soon.

Our preference is to amicably resolve this case without the need for protracted litigation, but if a reasonable offer is not presented, I am prepared to file on behalf of our client in the next two weeks should you choose to expose your insured to the litigation process.

Very Truly Yours,

Andrew Stikovic

{{ATTORNEY_NAME}}, ESQ.
{{FIRM_NAME}}

AS/ [REDACTED]